



Notification Waiver Determination

Armira and TA Associates – Intersurgical Aktiengesellschaft AG

Acquisition	Armira Opportunities III GmbH & Co. geschlossene Investment KG (Armira Opportunities III, and together with all affiliated companies and funds, Armira) and TA Riverside Aggregator LP (TA Riverside Aggregator), a special purpose vehicle created by certain funds controlled by TA Associates Cayman, LLC (the TA Funds, and together with all affiliated companies and funds, including TA Riverside Aggregator, TA Associates), propose to indirectly acquire, via Riverside Bidco Limited, share capital in and exercise joint control over Intersurgical Aktiengesellschaft AG (Intersurgical, and together with its controlled entities, Intersurgical Group), as described in the transaction documents provided as part of the application (the Acquisition). TA Riverside Aggregator and Armira Opportunities III applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	19 August 2026

Parties to the Acquisition	The acquirer, Riverside Bidco Limited, is currently an indirect wholly owned subsidiary of Armira Opportunities III. Armira is a Munich-based alternative investment fund manager, which specialises in providing capital for long-term partnerships and focusing on family-owned businesses and technology companies, primarily in Europe. TA Associates is a private equity firm headquartered in Boston, United States, that invests, through the TA Funds, in companies across five target industries: technology, financial services, healthcare, consumer, and business services. The target, Intersurgical, is a holding company registered in Liechtenstein which, through its operating subsidiaries (including Intersurgical Limited) controls the business of the Intersurgical Group. The Intersurgical Group is a global designer, manufacturer and supplier of medical devices for respiratory support, used in anaesthesia, intensive care, emergency care and oxygen therapy in hospitals and in the home. Its offering includes products for airway management, anaesthesia, emergency and resuscitation care, critical care, oxygen and aerosol therapy, nebuliser therapy, and respiratory physiotherapy.
-----------------------------------	---

	Intersurgical Limited has entered into a separate equity purchase agreement with Teleflex Inc. to acquire the acute care and interventional urology business of Teleflex Inc. (the Teleflex Business).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There is no horizontal overlap or vertical relationship between Armira (or its connected entities) and Intersurgical (including the Teleflex Business), or between TA Associates (or its connected entities) and Intersurgical (including the Teleflex Business), in the supply of medical devices for respiratory support in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act